

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE
WIFE, LLC,

Plaintiff,

vs.

KRISTEN JACOBS,

Defendant.

: CASE NO. 24-498

: (Judge Jeannine N. Pratt)

:

:

:

**DEFENDANT KRISTEN JACOB'S
MOTION TO COMPEL
ARBITRATION OR STAY
PENDING ARBITRATION**

Plaintiff The Other Woman and the Wife, LLC's ("Plaintiff") October 24, 2024 Complaint for Tortious Interference with Contract and Business Relations; with Jury Demand Endorsed Hereon ("Complaint") should be compelled to arbitration, or in the alternative, stayed pending resolution of the dispute in arbitration. Pursuant to Plaintiff's Terms of Service ("Contract Terms"), Plaintiff agreed to arbitrate "every dispute arising in connection with these Contract Terms, the Community, or communications from us," including any claim based in tort. Contract Terms (attached as Exhibit 1), § 15.1. Ignoring this language, Plaintiff brings its tort claims against Defendant Kristen Jacobs ("Kristen") even though it alleges (1) Kristen "joined" Plaintiff's "online subscription only community" (Compl., ¶¶ 5, 9); (2) a contract exists between Plaintiff and every member of its online, subscription-based community (*id.* at ¶ 12); (3) Kristen joined the "community" to interfere with its operations (*id.* at ¶ 7); (4) Plaintiff sent Kristen a "cease-and-desist notice" relating to Kristen's activity within Plaintiff's online

community (id. at ¶ 10); and (5) as a result of Kristen's activities, Plaintiff is injured (id. at ¶ 8). As such, there can be no dispute that Plaintiff's tort claims arise from and are in connection with the Contract Terms; therefore, Plaintiff's claims belong in arbitration. Rivera v. Rent A Center, Inc., 2015-Ohio-3765, ¶ 11 (8th Dist.) ("Ohio courts recognize a presumption favoring arbitration when the issue of the parties' dispute falls within the scope of the arbitration provision. [] In light of this strong presumption favoring arbitration, all doubts should be resolved in its favor.") (citations omitted); Taylor Bldg. Corp. of Am. Benfield, 117 Ohio St.3d 352, 358 (2008) ("Ohio law directs trial courts to grant a stay of litigation in favor of arbitration pursuant to a written arbitration agreement on application of one of the parties.").

For these reasons and those demonstrated in the memorandum in support of this Motion, which is incorporated by reference here, the Court should compel this dispute to arbitration, or in the alternative, stay proceeding pending arbitration.

Respectfully submitted,

/s/ Morgan K. Napier

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**MEMORANDUM IN SUPPORT OF DEFENDANT KRISTEN JACOB'S
MOTION TO COMPEL ARBITRATION OR STAY PENDING ARBITRATION**

This dispute belongs in arbitration pursuant to the plain language of the parties' contract—The Other Woman and the Wife, LLC's ("Plaintiff") Terms of Service ("Contract Terms"). A copy of the Contract Terms is attached as Exhibit 1. As demonstrated below, the Court should compel this action to arbitration, or in the alternative, stay this dispute pending arbitration.

I. **THE CONTRACT TERMS REQUIRE THIS DISPUTE TO BE ARBITRATED**

Plaintiff is an "on-line support community for women healing following an experience with infidelity." Oct. 24, 2024 Complaint for Tortious Interference with Contract and Business Relations; with Jury Demand Endorsed Hereon ("Complaint"), ¶ 3. When joining the online community, a contract is entered between Plaintiff and each member of the online community (*id.* at ¶ 12), including Plaintiff. *Id.* at ¶¶ 5, 9 (alleging that Kristen used her personal credit card to join the online community).

Upon subscribing or using Plaintiff's online community, subscribers (including Kristen) agree to an arbitration provision. Specifically, the parties agreed to the following in the Contract Terms:

ARBITRATION NOTICE. Except for certain kinds of disputes described in Section 15¹ . . . you agree that disputes arising under these Terms will be resolved by binding, individual arbitration, and BY ACCEPTING THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY

¹ There are only four exceptions to the arbitration clause: "(a) [] an individual action in small claims court; (b) [] an enforcement action through the applicable federal, state, or local agency if that action is available; (c) [] injunctive relief in a court of law . . . ; or (d) [] a suit in a court of law to address the intellectual property infringement claim." Contract Terms, § 15.2.

JURY OR TO PARTICIPATE IN ANY CLASS ACTION OR REPRESENTATIVE PROCEEDING.

....

[Y]ou and Community Owner² agree that every dispute arising in connection with these Terms, the Community, or communications from us will be resolved through binding arbitration This agreement to arbitrate disputes includes all claims whether based in contract, tort, statute, fraud, misrepresentation, or any other legal theory, and regardless of whether a claim arises during or after the termination of these Terms. Any dispute relating to the interpretation, applicability or enforceability of this binding arbitration agreement will be resolved by the arbitrator.

YOU UNDERSTAND AND AGREE THAT, BY ENTERING INTO THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION.

Contract Terms, pp. 1-2, §§ 15.1 (emphasis added). In addition, Plaintiff agreed that the arbitration provision is subject to the Federal Arbitration Act ("FAA") (id. at § 15.4) and that any dispute relating to the "interpretation, applicability, or enforcement" of the arbitration provision is to be resolved by the arbitrator. Id. at § 15.1. Moreover, if the arbitration provision is found to be unenforceable, then Plaintiff agreed that the state and federal courts in Kings County, New York have personal and exclusive jurisdiction over any dispute. Id. at § 16.3.

Despite drafting these provisions, Plaintiff brings its tort claims arising from Kristen's contractual relationship with Plaintiff (Compl., ¶¶ 5, 9); Kristen's connection with Plaintiff's online community (id. at ¶¶ 6-8); and Kristen's "fail[ure] and refus[al] to respond" to Plaintiff's cease and desist notice (id. at ¶ 10). Instead of alleging that the Contract Terms are

² "Community Owner" means Plaintiff. Contract Terms, p. 1.

inapplicable or unenforceable, or demonstrating that a different contract is applicable, Plaintiff simply chooses to ignore its contract and filed this action in state court.

II. THE COURT SHOULD COMPEL THIS DISPUTE TO ARBITRATION

R.C. 2711.02(B) permits a party to invoke an arbitration clause by requesting a stay of the action in the trial court until after the arbitrable issues are resolved as long as the movant "is not in default in proceeding with arbitration." Dietrich v. Core, 2023-Ohio-1463, ¶ 20 (9th Dist.); id. at ¶ 23 (quoting Mylechraine v. Forest City Enterprises Inc., 1987 Ohio App. LEXIS 5611, at * 2 (9th Dist. Jan. 21, 1987)) (Civ.R. 12 suspends "the time for serving an answer when the answering party files a motion under the rule" including a motion to dismiss based on the affirmative defense that the action belongs in arbitration). Stated differently, a motion to stay pending arbitration acts to stay the deadline to respond to the complaint. Id.

"The FAA embodies a 'liberal federal policy favoring arbitration,' and 'reflects the overarching principal that arbitration is a matter of contract.'" Discovery Resources, Inc. v. Ernst & Young U.S. LLP, 2016-Ohio-1283, ¶ 16 (9th Dist.) (quoting AT&T Mobility LLC v. Concepcion, 563 U.S. 333, 339 (2011) and citing Am. Express Co. v. Italian Colors Restaurant, 570 U.S. 228, 233-34 (2013)) (applying New York law when construing the arbitration agreement).³ As such, arbitration agreements "must [be] rigorously" enforced. Id. (quoting Italian Colors Restaurant at 233) (internal quotations omitted).

Prior to compelling a matter to arbitration pursuant to the FAA, the Court must make an initial determination: (1) whether a valid agreement to arbitrate exists; and (2) whether

³ The Contract Terms include a New York choice of law provision. Contract Terms, § 16.3 ("These Terms are governed by the laws of the State of New York without regard to conflict of law principals.").

the disputed issue falls within the "substantive scope of that agreement." *Id.* at ¶ 11 (citation omitted). Any dispute regarding the validity of the contract as a whole—and not the arbitration provision—is to be resolved by the arbitrator. *Id.* at ¶ 12 (quoting Buckeye Check Chasing, Inc. v. Cardegna, 546 U.S. 440, 449 (2006)). Courts are to apply "ordinary state-law principles that govern the formation of contracts" when determining if the parties agreed to arbitrate a dispute. *Id.* at ¶ 16 (quoting First Options of Chicago, Inc. v. Kaplan, 514 U.S. 938, 944 (1995)). This requires enforcement of the plain meaning of words and phrases that appear in a contract. *Id.* at ¶ 19 (quoting Am. Express Bank Ltd. v. Uniroyal, Inc., 164 A.D.2d 275, 277 (1990)).

Here, Plaintiff agreed to arbitrate the claims alleged in the Complaint. First, there are no facts in the Complaint to support a finding that the arbitration provision in the agreement that Plaintiff drafted is invalid, inapplicable, or unenforceable. Instead, Plaintiff ignores its existence all together. Second, Plaintiff's tort claims fall squarely within the conspicuous arbitration clause that appears twice in the Contract Terms. Contract Terms, pp. 1-2 ("you agree that disputes arising under these Terms will be resolved by binding, individual arbitration") (emphasis added); § 15.1 ("every dispute arising in connection with these Terms, the Community, or communications from us will be resolved through binding arbitration This agreement to arbitrate disputes includes all claims whether based in . . . tort") (emphasis added).

For these reasons, the dispute must be compelled to arbitration.

III. IN THE ALTERNATIVE, PLAINTIFF'S CLAIMS SHOULD BE STAYED
PENDING ARBITRATION

Section 3 of the FAA "requires courts to stay litigation of arbitral claims pending arbitration of those claims." AT&T Mobility LLC v. Concepcion, 563 US. 333, 344 (2011). A stay is, likewise, required by Ohio and New York law. Pursuant to R.C. 2711.02(B):

If any action is brought upon any issue referable to arbitration under an agreement in writing for arbitration, the court in which the action is pending, upon being satisfied that the issue involved in the action is referable to arbitration under an agreement in writing for arbitration, shall on application of one of the parties stay the trial of the action until the arbitration of the issue has been had in accordance with the agreement, provided the applicant for the stay is not in default in proceeding with arbitration.

Similarly, pursuant to CPLR § 7503(a):

A party aggrieved by the failure of another to arbitrate may apply for an order compelling arbitration. Where there is no substantial question whether a valid agreement was made or complied with, and the claim sought to be arbitrated is not barred by limitation under subdivision (b) of section 7502, the court shall direct the parties to arbitrate. Where any such question is raised, it shall be tried forthwith in said court. If an issue claimed to be arbitrable is involved in an action pending in a court having jurisdiction to hear a motion to compel arbitration, the application shall be made by motion in that action. If the application is granted, the order shall operate to stay a pending or subsequent action, or so much of it as is referable to arbitration.

Accord: Mitchell v. Dewitt Rehab. & Nursing Ctr., 2020 N.Y. Misc. LEXIS 11428, at *9-10 (Sup.Ct. Mar. 9, 2020) ("The FAA provides that courts must stay any suit or proceeding until arbitration is completed if it concerns 'any issue referable to arbitration under any agreement in writing for such arbitration'" (quoting 9 U.S.C. 3 and citing CPLR § 7503(a)).

Here, as demonstrated above, if the Court does not compel this action to arbitration, then it should stay this proceeding pending resolution of arbitrable issues, including

but not limited to the applicability of the arbitration agreement or contract to this dispute and Plaintiff's claims. Such a stay is required by the FAA and Ohio and New York law.

Respectfully submitted,

/s/ Morgan K. Napier

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CERTIFICATE OF SERVICE

I certify that on the 6th day of December 2024, the foregoing Defendant Kristen Jacob's Motion to Compel Arbitration or Stay Pending Arbitration was served via electronic mail pursuant to Civ.R. 5(B)(2)(f) upon the following counsel of record:

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/s/ Morgan K. Napier
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4924-5838-1059.1

EXHIBIT 1



OW Terms of Service

Last Updated: August 12, 2024

Welcome, and thank you for your interest in OW ("**Community Owner**," "**we**," or "**us**") and our online community, along with any mobile or other downloadable applications that we make available to enable access to the same (collectively, the "**Community**"). These Terms of Service are a legally binding contract between you and Community Owner regarding your use of the Community.

PLEASE READ THE FOLLOWING TERMS CAREFULLY.

BY ACCEPTING THESE TERMS, EITHER BY CLICKING "I ACCEPT" OR BY OTHERWISE ACCESSING OR USING THE COMMUNITY, YOU AGREE THAT YOU HAVE READ AND UNDERSTOOD, AND, AS A CONDITION TO YOUR USE OF AND ACCESS TO THE COMMUNITY, YOU AGREE TO BE BOUND BY, THE FOLLOWING TERMS AND CONDITIONS, INCLUDING [COMMUNITY OWNER'S PRIVACY POLICY](#) (COLLECTIVELY, THESE "**TERMS**") EITHER (A) ON BEHALF OF YOURSELF AS AN INDIVIDUAL, OR (B) IF YOU ARE ACCESSING THE COMMUNITY ON BEHALF OF AN ENTITY, ORGANIZATION, OR COMMUNITY OWNER, ON BEHALF OF SUCH ENTITY, ORGANIZATION OR COMMUNITY OWNER FOR WHICH YOU ACT, AND YOU REPRESENT THAT YOU HAVE THE AUTHORITY TO BIND SUCH ENTITY, ORGANIZATION OR COMMUNITY OWNER TO THIS AGREEMENT. IF YOU ARE NOT ELIGIBLE, OR DO NOT AGREE TO THE TERMS, THEN YOU DO NOT HAVE OUR PERMISSION TO USE THE COMMUNITY. YOUR USE OF THE COMMUNITY, AND COMMUNITY OWNER'S PROVISION OF THE COMMUNITY TO YOU, CONSTITUTES AN AGREEMENT BY COMMUNITY OWNER AND BY YOU TO BE BOUND BY THESE TERMS.

ARBITRATION NOTICE. Except for certain kinds of disputes described in Section 15 (*Dispute Resolution and Arbitration*), you agree that disputes arising under these Terms

will be resolved by binding, individual arbitration, and BY ACCEPTING THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN ANY CLASS ACTION OR REPRESENTATIVE PROCEEDING.

1. **Eligibility.** You must be at least 18 years old to join the Community. By agreeing to these Terms, you represent and warrant to us that: (a) you are at least 18 years old; (b) you have not previously been suspended or removed from the Community; and (c) your registration and your use of the Community is in compliance with any and all applicable laws and regulations.
2. **Accounts and Registration.** To access most features of the Community, you must register for an account. When you register for an account, you may be required to provide us with some information about yourself, such as your name, email address, or other contact information. You agree that the information you provide to us is accurate, complete, and not misleading, and that you will keep it accurate and up to date at all times. When you register, you will be asked to create a password. You are solely responsible for maintaining the confidentiality of your account and password, and you accept responsibility for all activities that occur under your account. If you believe that your account is no longer secure, then you should immediately notify us at community@theotherwomanandthewife.com or by using the mechanisms made available by Community Owner.

3. LICENSES

- 3.1. **Limited License.** Subject to your complete and ongoing compliance with these Terms, Community Owner grants you, solely for your personal, non-commercial use, a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to: (a) install and use any mobile or other downloadable application provided to you by Community Owner and associated with the Community on a mobile device that you own or control; and (b) access and use the Community.
- 3.2. **License Restrictions.** Except and solely to the extent such a restriction is impermissible under applicable law, you may not: (a) reproduce, distribute, publicly display, publicly perform, or create derivative works of the software powering the Community; (b) make modifications to the software powering the Community; or (c) interfere with or circumvent any feature of the Community, including any security or access control mechanism. If you are prohibited under applicable law from using the Community, then you may not use it.
- 3.3. **Feedback.** We respect and appreciate the thoughts and comments from our users. If you choose to provide input and suggestions regarding existing functionalities, problems with or proposed modifications or improvements to the Community ("**Submissions**"), then you hereby grant Community Owner and its Service Provider (defined in Section 16.1 below) an unrestricted, perpetual, irrevocable, non-exclusive, fully-paid, royalty-free right and license to exploit the Submissions in any manner and for any purpose, including to improve the Community and create other products and services. We will have no obligation to provide you with attribution for any Submissions you provide to us.

4. **Ownership; Proprietary Rights.** The Community is managed by Community Owner using a platform made available by Service Provider. The visual interfaces, graphics, design, compilation, information, data, computer code (including source code or object code), products, software, services, and all other elements of the Community provided by Community Owner or Service Provider ("**Materials**") are protected by intellectual property and other laws. All Materials included in the Community are the property of Community Owner or its third-party licensors (including Service Provider). Except as expressly authorized by Community Owner, you may not make use of the Materials. There are no implied licenses in these Terms and Community Owner and Service Provider reserve all rights to the Materials not granted expressly in these Terms.

5. THIRD-PARTY TERMS

5.1. **Third-Party Services.** Community Owner may provide tools through the Community that enable integration with third-party platforms, add-ons, services, or products not provided by Community Owner ("**Third-Party Services**"). If you direct us to transmit data to, or receive data from, a Third-Party Service on your behalf (including by enabling the applicable integration in the settings of the Community), then you authorize us and Service Provider to collect, access, use, derive, disclose, generate, transfer, transmit, store, host, or otherwise process ("**Process**") any such data, including User Content (defined in 6.1 below), in connection with the applicable integration, in a manner consistent with the functionality of the Community requested by you and the permissions granted to Community Owner by the relevant integration (which Processing may include, without limitation, performing queries on the data held by the Third-Party Service). You acknowledge and agree that your use of a Third-Party Service is subject to your agreement with the relevant provider of such Third-Party Service, and that Community Owner and Service Provider are not a party to such agreement. Community Owner and Service Provider do not control and have no liability for Third-Party Services, including their security, functionality, operation, availability, or interoperability with the Community or how the Third-Party Services or their providers use User Content. All data received from Third-Party Services on behalf of you as described herein will be deemed User Content under these Terms.

5.2. **Third-Party Software.** The Community may include or incorporate third-party software components that are generally available free of charge under licenses granting recipients broad rights to copy, modify, and distribute those components ("**Third-Party Components**"). Although the Community is provided to you subject to these Terms, nothing in these Terms prevents, restricts, or is intended to prevent or restrict you from obtaining Third-Party Components under the applicable third-party licenses or to limit your use of Third-Party Components under those third-party licenses.

6. USER CONDUCT

- 6.1. **User Content Generally.** Certain features of the Community may permit users to submit, upload, publish, broadcast, or otherwise transmit ("**Post**") content to the Community, including messages, reviews, photos, video or audio (including sound or voice recordings and musical recordings embodied in the video or audio), images, folders, data, text, and any other works of authorship or other works ("**User Content**"). You retain any copyright and other proprietary rights that you may hold in the User Content that you Post to the Community, subject to the licenses granted in these Terms.
- 6.2. **Limited License Grant to Community Owner.** By Posting User Content to or via the Community, you grant Community Owner and Service Provider a worldwide, non-exclusive, royalty-free, fully paid right and license (with the right to sublicense through multiple tiers) to host, store, transfer, publicly display, publicly perform (including by means of a digital audio transmission), communicate to the public, reproduce, modify for the purpose of formatting for display, create derivative works as authorized in these Terms, and distribute your User Content, in whole or in part, in any media formats and through any media channels, in each instance whether now known or hereafter developed. All of the rights you grant in these Terms are provided on a through-to-the-audience basis, meaning the owners or operators of external services will not have any separate liability to you or any other third party for User Content Posted or otherwise used on external services via the Community. You agree to pay all monies owing to any person or entity resulting from Posting your User Content and from Community Owner's or Service Provider's exercise of the license set forth in this Section.
- 6.3. **You Must Have Rights to the Content You Post; User Content Representations and Warranties.** You must not Post User Content if you are not the owner of or are not fully authorized to grant rights in all of the elements of that User Content including in all ambient music and underlying musical works embodied in any sound recording. Community Owner disclaims any and all liability in connection with User Content. You are solely responsible for your User Content and the consequences of providing User

Content via the Community. By providing User Content via the Community, you affirm, represent, and warrant to us that:

- (a) you are the Community Owner and owner of the User Content, or have the necessary licenses, rights, consents, and permissions to authorize Community Owner and users of the Community to use and distribute your User Content as necessary to exercise the licenses granted by you in this Section, in the manner contemplated by Community Owner, Service Provider, the Community, and these Terms;
- (b) your User Content, and the Posting or other use of your User Content as contemplated by these Terms, does not and will not: (i) infringe, violate, misappropriate, or otherwise breach any third-party right, including any copyright, trademark, patent, trade secret, moral right, privacy right, right of publicity, or any other intellectual property, contract, or proprietary right; (ii) slander, defame, libel, or invade the right of privacy, publicity or other property rights of any other person; or (iii) cause Community Owner or Service Provider to violate any law or regulation or require Community Owner or Service Provider to obtain any further licenses from or pay any royalties, fees, compensation or other amounts or provide any attribution to any third parties; and
- (c) your User Content could not be deemed by a reasonable person to be objectionable, profane, indecent, pornographic, harassing, threatening, embarrassing, hateful, or otherwise inappropriate.

6.4. User Content Disclaimer. Community Owner and Service Provider are under no obligation to edit or control User Content that you or other users Post and will not be in any way responsible or liable for User Content. Community Owner or Service Provider may, however, at any time and without prior notice, screen, remove, edit, or block any User Content that in our sole judgment violates these Terms, is alleged to violate the rights of third parties, or is otherwise objectionable. You understand that, when using the Community, you will be exposed to User Content from a variety of

sources and acknowledge that User Content may be inaccurate, offensive, indecent, or objectionable. You agree to waive, and do waive, any legal or equitable right or remedy you have or may have against Community Owner or Service Provider with respect to User Content. If notified by a user or content owner that User Content allegedly does not conform to these Terms, Community Owner may (or may permit Service Provider to) investigate the allegation and determine whether to remove the User Content, which Community Owner and Service Provider reserve the right to do at any time, without notice, and for any reason. For clarity, Community Owner does not permit infringing activities on the Community.

- 6.5. **Monitoring Content.** Community Owner and Service Provider do not control and do not have any obligation to monitor: (a) User Content; (b) any content made available by third parties; or (c) the use of the Community by its users. You acknowledge and agree that Community Owner and Service Provider reserve the right to, and may from time to time, monitor any and all information transmitted or received through the Community for operational and other purposes. If at any time Community Owner or Service Provider choose to monitor the content, then Community Owner and Service Provider still assume no responsibility or liability for content or any loss or damage incurred as a result of the use of content. During monitoring, information may be examined, recorded, copied, and used in accordance with [Community Owner's Privacy Policy](#). Community Owner and Service Provider may block, filter, mute, remove or disable access to any User Content uploaded to or transmitted through the Community without any liability to the user who Posted such User Content to the Community or to any other users of the Community.

7. COMMUNICATIONS

- 7.1. **Push Notifications.** When you install our app on your mobile device, you agree to receive push notifications, which are messages an app sends you on your mobile device when you are not in the app. You can turn off notifications by visiting your mobile device's "settings" page.
- 7.2. **In-App Notifications.** When you install our app on your mobile device, we may send you in-app notifications. You can turn off notifications in the app's "settings" page.
- 7.3. **Email.** We may send you emails concerning our products and services, as well as those of third parties. You may opt out of promotional emails by following the unsubscribe instructions in the promotional email itself. Even if you opt out of receiving promotional messages from us, you will continue to receive administrative messages from us.

8. PROHIBITED CONDUCT. BY USING THE COMMUNITY, YOU AGREE NOT TO:

- 8.1 use the Community for any illegal purpose or in violation of any local, state, national, or international law;
- 8.2 harass, threaten, demean, embarrass, bully, or otherwise harm any other user of the Community;
- 8.3 violate, encourage others to violate, or provide instructions on how to violate, any right of a third party, including by infringing or misappropriating any third-party intellectual property right;
- 8.4 access, search, or otherwise use any portion of the Community through the use of any engine, software, tool, agent, device, or mechanism (including spiders, robots, crawlers, and data mining tools) other than the software or search agents provided by Community Owner or Service Provider;
- 8.5 interfere with security-related features of the Community, including by: (a) disabling or circumventing features that prevent or limit use, printing or

copying of any content; or (b) reverse engineering or otherwise attempting to discover the source code of any portion of the Community except to the extent that the activity is expressly permitted by applicable law;

- 8.6 interfere with the operation of the Community or any user's enjoyment of the Community, including by: (a) uploading or otherwise disseminating any virus, adware, spyware, worm, or other malicious code; (b) making any unsolicited offer or advertisement to another user of the Community; (c) collecting personal information about another user or third party without consent; or (d) interfering with or disrupting any network, equipment, or server connected to or used to provide the Community;
- 8.7 perform any fraudulent activity including impersonating any person or entity, claiming a false affiliation or identity, accessing any other Community account without permission, or falsifying your age or date of birth;
- 8.8 sell or otherwise transfer the access granted under these Terms or any Materials (as defined in Section 4(*Ownership; Proprietary Rights*)) or any right or ability to view, access, or use any Materials; or
- 8.9 attempt to do any of the acts described in this Section 8 (*Prohibited Conduct*) or assist or permit any person in engaging in any of the acts described in this Section 8 (*Prohibited Conduct*).

9. INTELLECTUAL PROPERTY RIGHTS PROTECTION

- 9.1. **Respect of Third Party Rights.** Community Owner respects the intellectual property rights of others, takes the protection of intellectual property rights very seriously, and asks users of the Community to do the same. Infringing activity will not be tolerated on or through the Community.
- 9.2. **DMCA Notification.** We comply with the provisions of the Digital Millennium Copyright Act applicable to Internet service providers (17 U.S.C. § 512, as amended) and the Community is subject to [Service Provider's DMCA policy](#).

10. **Modification of Terms.** We may, from time to time, change these Terms. Please check these Terms periodically for changes. Revisions will be effective immediately except that, for existing users, material revisions will be effective 30 days after posting or notice to you of the revisions unless otherwise stated. We may require that you accept modified Terms in order to continue to use the Community. If you do not agree to the modified Terms, then you should remove your User Content and discontinue your use of the Community. Except as expressly permitted in this Section 10 (Modification of Terms), these Terms may be amended only by a written agreement signed by authorized representatives of the parties to these Terms.

11. TERM, TERMINATION, AND MODIFICATION OF THE COMMUNITY

11.1. **Term.** These Terms are effective beginning when you accept the Terms or first download, install, access, or use the Community, and ending when terminated as described in Section 11.2 (*Termination*).

11.2. **Termination.** If you violate any provision of these Terms, then your authorization to access the Community and these Terms automatically terminate. In addition, Community Owner may, at its sole discretion, terminate these Terms or your account on the Community, or suspend or terminate your access to the Community, at any time for any reason or no reason, with or without notice, and without any liability to you arising from such termination. You may terminate your account and these Terms at any time by using the mechanism designated in the Community or contacting customer service at community@theotherwomanandthewife.com.

11.3. **Effect of Termination.** Upon termination of these Terms: (a) your license rights will terminate and you must immediately cease all use of the Community; (b) you will no longer be authorized to access your account or the Community; (c) you must pay Community Owner any unpaid amount that was due prior to termination; and (d) all payment obligations accrued prior to termination and Sections 3.3 (*Feedback*), 4 (*Ownership; Proprietary Rights*), 11.3 (*Effect of Termination*), 12 (*Indemnity*), 13 (*Disclaimers; No Warranties by Community Owner*), 14 (*Limitation of Liability*), 15 (*Dispute Resolution and Arbitration*), and 16 (*Miscellaneous*) will survive. You are solely

responsible for retaining copies of any User Content you Post to the Community since upon termination of your account, you may lose access rights to any User Content you Posted to the Community. If your account has been terminated for a breach of these Terms, then you are prohibited from creating a new account on the Community using a different name, email address or other forms of account verification.

11.4. Modification of the Community. Community Owner reserves the right to modify or discontinue all or any portion of the Community at any time (including by limiting or discontinuing certain features of the Community), temporarily or permanently, without notice to you. Community Owner will have no liability for any change to the Community, including any paid-for functionalities of the Community, or any suspension or termination of your access to or use of the Community. You should retain copies of any User Content you Post to the Community so that you have permanent copies in the event the Community is modified in such a way that you lose access to User Content you Posted to the Community.

12. Indemnity. To the fullest extent permitted by law, you are responsible for your use of the Community, and you will defend and indemnify Community Owner, its affiliates, and their respective shareholders, directors, managers, members, officers, employees, consultants, and agents (together, the "**Specified Entities**") and Service Provider from and against every claim brought by a third party, and any related liability, damage, loss, and expense, including attorneys' fees and costs, arising out of or connected with: (1) your unauthorized use of, or misuse of, the Community; (2) your violation of any portion of these Terms, any representation, warranty, or agreement referenced in these Terms, or any applicable law or regulation; (3) your violation of any third-party right, including any intellectual property right or publicity, confidentiality, other property, or privacy right; or (4) any dispute or issue between you and any third party. We reserve the right, at our own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you (without limiting your indemnification obligations with respect to that matter), and in that case, you agree to cooperate with our defense of those claims.

13. **DISCLAIMERS; NO WARRANTIES BY COMMUNITY OWNER**

- 13.1. THE COMMUNITY AND ALL MATERIALS AND CONTENT AVAILABLE THROUGH THE COMMUNITY ARE PROVIDED "AS IS" AND ON AN "AS AVAILABLE" BASIS. COMMUNITY OWNER AND SERVICE PROVIDER DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, RELATING TO THE COMMUNITY AND ALL MATERIALS AND CONTENT AVAILABLE THROUGH THE COMMUNITY, INCLUDING: (a) ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, OR NON-INFRINGEMENT; AND (b) ANY WARRANTY ARISING OUT OF COURSE OF DEALING, USAGE, OR TRADE. COMMUNITY OWNER AND ITS SERVICE PROVIDER DO NOT WARRANT THAT THE COMMUNITY OR ANY PORTION OF THE COMMUNITY, OR ANY MATERIALS OR CONTENT OFFERED THROUGH THE COMMUNITY, WILL BE UNINTERRUPTED, SECURE, OR FREE OF ERRORS, VIRUSES, OR OTHER HARMFUL COMPONENTS, AND COMMUNITY OWNER DOES NOT WARRANT THAT ANY OF THOSE ISSUES WILL BE CORRECTED.
- 13.2. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM THE COMMUNITY, SPECIFIED ENTITIES, OR SERVICE PROVIDER, OR ANY MATERIALS OR CONTENT AVAILABLE THROUGH THE COMMUNITY WILL CREATE ANY WARRANTY REGARDING ANY OF THE SPECIFIED ENTITIES OR THE COMMUNITY THAT IS NOT EXPRESSLY STATED IN THESE TERMS. WE ARE NOT RESPONSIBLE FOR ANY DAMAGE THAT MAY RESULT FROM THE COMMUNITY AND YOUR DEALING WITH ANY OTHER COMMUNITY USER. YOU UNDERSTAND AND AGREE THAT YOU USE ANY PORTION OF THE COMMUNITY AT YOUR OWN DISCRETION AND RISK, AND THAT WE ARE NOT RESPONSIBLE FOR ANY DAMAGE TO YOUR PROPERTY (INCLUDING YOUR COMPUTER SYSTEM OR MOBILE DEVICE USED IN CONNECTION WITH THE COMMUNITY) OR ANY LOSS OF DATA, INCLUDING USER CONTENT.
- 13.3. THE LIMITATIONS, EXCLUSIONS AND DISCLAIMERS IN THIS SECTION 13 (DISCLAIMERS; NO WARRANTIES BY COMMUNITY OWNER) APPLY TO THE FULLEST EXTENT PERMITTED BY LAW. Community Owner does not disclaim any warranty or other right that Community Owner is prohibited

from disclaiming under applicable law.

14. LIMITATION OF LIABILITY

- 14.1. TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT WILL THE SPECIFIED ENTITIES BE LIABLE TO YOU FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES (INCLUDING DAMAGES FOR LOSS OF PROFITS, GOODWILL, OR ANY OTHER INTANGIBLE LOSS) ARISING OUT OF OR RELATING TO YOUR ACCESS TO OR USE OF, OR YOUR INABILITY TO ACCESS OR USE, THE COMMUNITY OR ANY MATERIALS OR CONTENT ON THE COMMUNITY, WHETHER BASED ON WARRANTY, CONTRACT, TORT (INCLUDING NEGLIGENCE), STATUTE, OR ANY OTHER LEGAL THEORY, AND WHETHER OR NOT ANY SPECIFIED ENTITY OR SERVICE PROVIDER HAS BEEN INFORMED OF THE POSSIBILITY OF DAMAGE.
- 14.2. EXCEPT AS PROVIDED IN SECTIONS 15.5 (*COMMENCING ARBITRATION*) AND 15.7 (*ARBITRATION RELIEF*) AND TO THE FULLEST EXTENT PERMITTED BY LAW, THE AGGREGATE LIABILITY OF THE SPECIFIED ENTITIES TO YOU FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THE USE OF OR ANY INABILITY TO USE ANY PORTION OF THE COMMUNITY OR OTHERWISE UNDER THESE TERMS, WHETHER IN CONTRACT, TORT, OR OTHERWISE, IS LIMITED TO THE GREATER OF: (A) THE AMOUNT YOU HAVE PAID TO COMMUNITY OWNER FOR ACCESS TO AND USE OF THE COMMUNITY IN THE 12 MONTHS PRIOR TO THE EVENT OR CIRCUMSTANCE GIVING RISE TO THE CLAIM AND (B) US\$100.
- 14.3. WITHOUT LIMITING THE FOREGOING, YOU AND COMMUNITY OWNER AGREE THAT SERVICE PROVIDER IS NOT A PARTY TO THIS AGREEMENT AND, TO THE FULLEST EXTENT PERMITTED BY LAW, SERVICE PROVIDER WILL HAVE NO LIABILITY TO YOU ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT. YOU AGREE THAT IF YOU BRING A CLAIM AGAINST SERVICE PROVIDER ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, SUCH CLAIM IS SUBJECT TO THE DISPUTE RESOLUTION PROCEDURE SET FORTH IN SECTION 15, AND SERVICE

PROVIDER WILL BE DEEMED SUBSTITUTED FOR COMMUNITY OWNER THEREUNDER SOLELY FOR THE PURPOSE OF SUCH CLAIM.

14.4. EACH PROVISION OF THESE TERMS THAT PROVIDES FOR A LIMITATION OF LIABILITY, DISCLAIMER OF WARRANTIES, OR EXCLUSION OF DAMAGES IS INTENDED TO AND DOES ALLOCATE THE RISKS BETWEEN THE PARTIES UNDER THESE TERMS. THIS ALLOCATION IS AN ESSENTIAL ELEMENT OF THE BASIS OF THE BARGAIN BETWEEN THE PARTIES. EACH OF THESE PROVISIONS IS SEVERABLE AND INDEPENDENT OF ALL OTHER PROVISIONS OF THESE TERMS. THE LIMITATIONS IN THIS SECTION 14 (*LIMITATION OF LIABILITY*) WILL APPLY EVEN IF ANY LIMITED REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

15. DISPUTE RESOLUTION AND ARBITRATION

15.1. **Generally.** Except as described in Section 15.2 (Exceptions) and 15.3 (Opt-Out), you and Community Owner agree that every dispute arising in connection with these Terms, the Community, or communications from us will be resolved through binding arbitration. Arbitration uses a neutral arbitrator instead of a judge or jury, is less formal than a court proceeding, may allow for more limited discovery than in court, and is subject to very limited review by courts. This agreement to arbitrate disputes includes all claims whether based in contract, tort, statute, fraud, misrepresentation, or any other legal theory, and regardless of whether a claim arises during or after the termination of these Terms. Any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement will be resolved by the arbitrator.

YOU UNDERSTAND AND AGREE THAT, BY ENTERING INTO THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION.

15.2. **Exceptions.** Although we are agreeing to arbitrate most disputes between us, nothing in these Terms will be deemed to waive, preclude, or otherwise limit the right of either party to: (a) bring an individual action in small claims court; (b) pursue an enforcement action through the applicable federal,

state, or local agency if that action is available; (c) seek injunctive relief in a court of law in aid of arbitration; or (d) to file suit in a court of law to address an intellectual property infringement claim.

- 15.3. **Opt-Out.** If you do not wish to resolve disputes by binding arbitration, you may opt out of the provisions of this Section 15 (*Dispute Resolution and Arbitration*) within 30 days after the date that you agree to these Terms by sending a letter to OW, Attention: Legal Department – Arbitration Opt-Out, community@theotherwomanandthewife.com that specifies: your full legal name, the email address associated with your account on the Community, and a statement that you wish to opt out of arbitration ("**Opt-Out Notice**"). Once Community Owner receives your Opt-Out Notice, this Section 15 (*Dispute Resolution and Arbitration*) will be void and any action arising out of these Terms will be resolved as set forth in Section 16.3 (*Governing Law*). The remaining provisions of these Terms will not be affected by your Opt-Out Notice.
- 15.4. **Arbitrator.** This arbitration agreement, and any arbitration between us, is subject to the Federal Arbitration Act and will be administered by the JAMS under the rules applicable to consumer disputes (collectively, "**JAMS Rules**") as modified by these Terms. The JAMS Rules and filing forms are available online at www.jamsadr.com, by calling the JAMS at +1-800-352-5267 or by contacting Community Owner.
- 15.5. **Commencing Arbitration.** Before initiating arbitration, a party must first send a written notice of the dispute to the other party by certified U.S. Mail or by Federal Express (signature required) or, only if that other party has not provided a current physical address, then by electronic mail ("**Notice of Arbitration**"). Community Owner's address for Notice is: OW, community@theotherwomanandthewife.com. The Notice of Arbitration must: (a) identify the name or account number of the party making the claim; (b) describe the nature and basis of the claim or dispute; and (c) set forth the specific relief sought ("**Demand**"). The parties will make good faith efforts to resolve the claim directly, but if the parties do not reach an agreement to do so within 30 days after the Notice of Arbitration is received, you or Community Owner may commence an arbitration proceeding. If you

commence arbitration in accordance with these Terms, Community Owner will reimburse you for your payment of the filing fee, unless your claim is for more than US\$10,000 or if Community Owner has received 25 or more similar demands for arbitration, in which case the payment of any fees will be decided by the JAMS Rules. If the arbitrator finds that either the substance of the claim or the relief sought in the Demand is frivolous or brought for an improper purpose (as measured by the standards set forth in Federal Rule of Civil Procedure 11(b)), then the payment of all fees will be governed by the JAMS Rules and the other party may seek reimbursement for any fees paid to JAMS.

15.6. Arbitration Proceedings. Any arbitration hearing will take place in the county and state of your residence unless we agree otherwise or, if the claim is for US\$10,000 or less (and does not seek injunctive relief), you may choose whether the arbitration will be conducted: (a) solely on the basis of documents submitted to the arbitrator; (b) through a telephonic or video hearing; or (c) by an in-person hearing as established by the JAMS Rules in the county (or parish) of your residence. During the arbitration, the amount of any settlement offer made by you or Community Owner must not be disclosed to the arbitrator until after the arbitrator makes a final decision and award, if any. Regardless of the manner in which the arbitration is conducted, the arbitrator must issue a reasoned written decision sufficient to explain the essential findings and conclusions on which the decision and award, if any, are based.

15.7. Arbitration Relief. Except as provided in Section 15.8 (*No Class Actions*), the arbitrator can award any relief that would be available if the claims had been brought in a court of competent jurisdiction. If the arbitrator awards you an amount higher than the last written settlement amount offered by Community Owner before an arbitrator was selected, Community Owner will pay to you the higher of: (a) the amount awarded by the arbitrator and (b) US\$10,000. The arbitrator's award shall be final and binding on all parties, except (1) for judicial review expressly permitted by law or (2) if the arbitrator's award includes an award of injunctive relief against a party, in which case that party shall have the right to seek judicial review of the

injunctive relief in a court of competent jurisdiction that shall not be bound by the arbitrator's application or conclusions of law. Judgment on the award may be entered in any court having jurisdiction.

15.8. No Class Actions. YOU AND COMMUNITY OWNER AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING. Further, unless both you and Community Owner agree otherwise, the arbitrator may not consolidate more than one person's claims, and may not otherwise preside over any form of a representative or class proceeding.

15.9. Modifications to this Arbitration Provision. If Community Owner makes any substantive change to this arbitration provision, you may reject the change by sending us written notice within 30 days of the change to Community Owner's address for Notice of Arbitration, in which case your account with Community Owner will be immediately terminated and this arbitration provision, as in effect immediately prior to the changes you rejected will survive.

15.10. Enforceability. If Section 15.8 (*No Class Actions*) or the entirety of this Section 15 (*Dispute Resolution and Arbitration*) is found to be unenforceable, or if Community Owner receives an Opt-Out Notice from you, then the entirety of this Section 15 (*Dispute Resolution and Arbitration*) will be null and void and, in that case, the exclusive jurisdiction and venue described in Section 16.3 (*Governing Law*) will govern any action arising out of or related to these Terms.

16. MISCELLANEOUS

16.1. Third-Party Beneficiary. The Community is powered by a technology platform provided by CircleCo, Inc. ("**Service Provider**"). You and we acknowledge and agree that (a) Service Provider is an intended third-party beneficiary to these Terms, (b) is entitled to rights and benefits hereunder, and (c) may enforce these Terms against you as if it were an original party hereto.

- 16.2. **General Terms.** These Terms, including the Privacy Policy and any other agreements expressly incorporated by reference into these Terms, are the entire and exclusive understanding and agreement between you and Community Owner regarding your use of the Community. These Terms or any rights under these Terms, may not be assigned either by us or by you in whole or in part, by operation of law or otherwise, without our Service Provider's prior written consent. The failure to require performance of any provision will not affect our right to require performance at any other time after that, nor will a waiver by us of any breach or default of these Terms, or any provision of these Terms, be a waiver of any subsequent breach or default or a waiver of the provision itself. Use of Section headers in these Terms is for convenience only and will not have any impact on the interpretation of any provision. Throughout these Terms the use of the word "including" means "including but not limited to." If any part of these Terms is held to be invalid or unenforceable, then the unenforceable part will be given effect to the greatest extent possible, and the remaining parts will remain in full force and effect.
- 16.3. **Governing Law.** These Terms are governed by the laws of the State of New York without regard to conflict of law principles. You and Community Owner submit to the personal and exclusive jurisdiction of the state courts and federal courts located within Kings County, New York for resolution of any lawsuit or court proceeding permitted under these Terms. Service Provider operates the service that we use to provide the Community from its offices in New York, and we make no representation that Materials included in the Community are appropriate or available for use in other locations.
- 16.4. **Privacy Policy.** You understand and agree to the processing of your personal data in connection with the Community in accordance with [Community Owner's Privacy Policy](#), which is hereby incorporated by reference into Section 16.4 of these Terms.
- 16.5. **Consent to Electronic Communications.** By using the Community, you consent to receiving certain electronic communications from us as further described in our Privacy Policy. Please read our Privacy Policy to learn more

about our electronic communications practices. You agree that any notices, agreements, disclosures, or other communications that we send to you electronically will satisfy any legal communication requirements, including that those communications be in writing.

- 16.6. **Notice to California Residents.** If you are a California resident, then under California Civil Code Section 1789.3, you may contact the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs in writing at 1625 N. Market Blvd., Suite N 112, Sacramento, California 95834, or by telephone at +1-800-952-5210 in order to resolve a complaint regarding the Community or to receive further information regarding use of the Community.

17. **Notice Regarding Apple.** This Section 17 (*Notice Regarding Apple*) only applies to the extent you are using our mobile application on an iOS device. You acknowledge that these Terms are between you and Community Owner only, not with Apple Inc. ("**Apple**"), and Apple is not responsible for the Community or the content of it. Apple has no obligation to furnish any maintenance and support services with respect to the Community. If the Community fails to conform to any applicable warranty, you may notify Apple, and Apple will refund any applicable purchase price for the mobile application to you. To the maximum extent permitted by applicable law, Apple has no other warranty obligation with respect to the Community. Apple is not responsible for addressing any claims by you or any third party relating to the Community or your possession and/or use of the Community, including: (1) product liability claims; (2) any claim that the Community fails to conform to any applicable legal or regulatory requirement; or (3) claims arising under consumer protection or similar legislation. Apple is not responsible for the investigation, defense, settlement, and discharge of any third-party claim that the Community and/or your possession and use of the Community infringe a third party's intellectual property rights. You agree to comply with any applicable third-party terms when using the Community. Apple and Apple's subsidiaries are third-party beneficiaries of these Terms, and upon your acceptance of these Terms, Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms against you as a third-party beneficiary of these Terms. You hereby represent and warrant that: (a) you are not located in a country that is subject to a U.S. Government embargo or that has been designated by the U.S. Government as a "terrorist supporting" country; and (b) you are not listed on any U.S. Government list of prohibited or restricted parties.